

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR
MONTEBELLO UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

GEORGE MURIEL,

a Permanent Certificated Employee,

Respondent.

OAH No. 2025010426

DECISION

This matter was heard by the Commission on Professional Competence (Commission) via videoconference on May 12 through May 15, 2025. The Commission consists of (1) John Chae, Alhambra Unified School District; (2) Marla Diaz, El Rancho Unified School District; and (3) Taylor Steinbacher, Administrative Law Judge (ALJ), Office of Administrative Hearings, State of California. ALJ Steinbacher presided.

Marina L. Ramirez, Esq. of Alvarez-Glasman & Colvin represented Montebello Unified School District (District).

Respondent George Muriel appeared briefly on the first day of hearing, but otherwise was not present and was not represented.

Before the presentation of evidence, respondent appeared and moved for a continuance. The ALJ denied the motion, finding respondent had not established good cause to continue the matter under Government Code section 11525.

The ALJ also heard oral argument on the District's pre-trial motion in limine to exclude evidence, documents, and testimony from witnesses not identified or produced by respondent in discovery. The ALJ deferred ruling on this motion until respondent moved to introduce such evidence into the record. As respondent did not introduce any evidence into the record, the motion is denied as moot.

Before the hearing, the District moved to have all exhibits and all transcripts of the hearing sealed under protective order to protect the identities of certain minor students and their families. The ALJ ordered that any testimonial reference to the names of minor students or their parents be replaced in the hearing transcript, obviating the need to seal the transcript. Moreover, the District's request to place every exhibit under seal is overbroad, as not every exhibit concerns or identifies the minor students and their families. Accordingly, only certain exhibits and the District's Final Witness list filed with OAH shall be placed under seal to protect the anonymity of those parties. A protective order sealing certain exhibits, and a confidential names list protecting the confidentiality of minor students and their families, is being issued concurrently with this decision.

Testimonial and documentary evidence was received. The record closed and the matter was submitted for decision on May 15, 2025. Thereafter, the Commission conducted deliberations in executive session.

SUMMARY

Respondent, a school counselor for the District, told a sixth-grade student that the student was adopted. The student was unaware he was adopted until this disclosure and respondent did this without the consent of the student's parents and without notice to anyone at the District. After considering all the evidence and argument presented, the Commission concluded respondent's disclosures to the student constituted egregious misconduct. The Commission further determined respondent's misconduct, coupled with his years-long record of disobedience of District policies and the directives of his supervisors, warrant respondent's dismissal from the District.

FACTUAL FINDINGS

Jurisdiction and Parties

1. Respondent is a certificated employee employed by the District as a school counselor. His most recent assignment was as a counselor, dividing his time between Montebello Intermediate School (MIS) and Bell Gardens Intermediate School (BGI).

2. On August 22, 2024, Zepure Hacobian, Assistant Superintendent of Human Resources for the District (Hacobian), served respondent with a Notice of Proposed Discipline and Statement of Charges for Dismissal and Immediate Unpaid Suspension.

3. Respondent was given an opportunity to challenge the proposed discipline at a *Skelly* meeting scheduled for September 9, 2024. (Exs. 13, 53.)

Respondent did not attend the meeting. By letter dated September 10, 2024, the *Skelly* officer found that there was sufficient evidence to support the proposed disciplinary action and that disciplinary action against respondent was appropriate. (Ex. 54.)

4. On November 6, 2024, the District's Board of Education (Board) held a meeting in which it considered whether to adopt the *Skelly* officer's findings. That day, the Board approved the recommendation to dismiss respondent and place him on immediate unpaid suspension pending the dismissal. (Ex. 13, pp. A328–A329; Ex. 14, p. A355.)

5. On November 12, 2024, the District issued a Notice of Discipline and Statement of Charges for Dismissal and Immediate Unpaid Suspension to respondent (Statement of Charges). (Ex. 14.) The Statement of Charges alleges four grounds for dismissal and immediate unpaid suspension: immoral conduct, dishonesty, evident unfitness for service, and persistent violation of or refusal to obey the school laws of the state or by the governing board of the school district employing him (persistent violation). (Ex. 14, pp. A345–A353.)

6. Respondent timely requested a hearing to challenge his suspension and dismissal. (Ex. 15.)

Progressive Discipline of Respondent

7. Respondent has worked for the District for over 20 years. (Testimony [Test.] of Tenorio.) In that time, he held various positions, including as a counselor administrator, an acting administrator, and a director in the student services department. (Test. of Hacopian.) After he was demoted from an administrative position back to a counselor, respondent alleged certain District employees and administrators engaged discriminatory, inappropriate, and unprofessional treatment towards him

during the 2019-2020 school year. (Ex. 46, pp. A1133–A1136; Test. of Hacopian.) In January 2022, the District engaged an outside firm called the Titan Group to investigate respondent’s allegations. (Ex. 46, p. A1136.) The Titan Group issued a Findings Letter in May 2022, stating that all respondent’s allegations were unfounded or could not be sustained. (*Id.* at pp. A1133–A1135.)

8. In June 2022, respondent twice used his District email address to send missives detailing personal issues and grievances he had with the District’s investigation. (Ex. 43, p. A1118.) Among the recipients of those emails were various Los Angeles County Office of Education (LACOE) and District employees. (*Ibid.*) On June 15, 2022, Hacopian issued respondent a written warning, stating that using his District email address to send these emails was contrary to various District policies. (*Ibid.*) The written warning directed respondent to, among other things, stop sending mass emails using his District email account for “personal matters/grievances,” or emails addressed to outside agencies like LACOE, unless the communications related to union activities. (*Ibid.*)

9. On August 2, 2022, respondent sent an email to Hacopian and on August 10, 2022, he sent her a written letter (neither communication was introduced into evidence). (Ex. 44, p. A1129.) On August 10, 2022, Hacopian responded to those communications. Hacopian’s response include a directive to stop making baseless claims about (1) the Titan Group’s investigation into his claims of misconduct by the District; (2) alleged denials of his right to union representation in connection with that investigation; and (3) his entitlement to a management position he was allegedly promised outside the normal District hiring procedures. (*Id.* at pp. A1129–A1130.)

10. Thereafter, respondent continued to violate Hacopian’s directives from the written warning by sending emails with personal complaints and grievances to

LACOE staff and inappropriate District employees. (Ex. 46, pp. A1137–A1138.) In addition, while out on sick leave, respondent appeared at his assigned work site on January 12, 2023, without prior notice to Hacopian or any other District administrator that he would be returning to work that day. (*Id.* at p. A1139.) While still out on sick leave, respondent appeared at a District administrative office on February 3, 2023, and demanded to meet with Dr. Allison Garland, a District assistant superintendent, and then entered her office without permission. (*Ibid.*) Respondent then, in May 2023, sent two additional emails with personal complaints and grievances to inappropriate District staff who were not assigned to receive such complaints, as noted previously by Hacopian. (*Ibid.*)

11. In response to respondent’s continuing violation of Hacopian’s directives, she issued respondent a Letter of Reprimand dated May 25, 2023. (Ex. 46.) The Letter of Reprimand provided a timeline of respondent’s conduct, reiterated previous written directives for respondent to follow, and provided additional written directives addressing respondent’s recent conduct. These included prohibiting respondent from appearing unannounced at District administrative offices to meet with District administrators or cabinet members, and directing him to stop sending threatening emails to any District employee. (*Id.* at pp. 1140–1141.) The Letter of Reprimand noted that failure to comply with those directives could result in further disciplinary action up to and including dismissal. This letter was personally served on respondent, but respondent refused to sign an acknowledgment stating he received it. (*Id.* at p. A1142; Test. of Hacopian.)

12. On July 7, 2023, respondent again emailed District administrative staff, including Dr. Garland and Mark Skvarna, the District Superintendent, setting forth complaints and personal grievances. (Ex. 47.) The email demanded, among other

things, that Superintendent Skvarna and Hacopian respond to pointed questions. (*Ibid.*)

Respondent's Disclosure of Confidential Information

13. About two weeks before February 23, 2024, Student #2, an eighth-grade student at MIS, approached respondent. Student #2 told respondent he had received information that his biological brother also attended MIS, but his brother's identity was unknown to him. (Ex. 8, p. A80; Test. of R.O.¹) Student #2 expressed a desire to meet his biological brother and presented respondent with a list of surnames his brother might have, but respondent could not locate anyone at MIS with those surnames using District student information databases. (*Ibid.*)

14. Respondent's previous encounters with Student #2 were limited to speaking with him about his schoolwork briefly on three or five occasions. (Ex. 8, p. A97–A98.) Respondent had also tried to contact Student #2's father by telephone and email to praise Student #2's schoolwork but received no response. (*Id.* at pp. A98–A99.) Aside from those communications, respondent had little contact with Student #2

¹ Although respondent did not testify at the hearing, the District introduced into evidence a deposition transcript in which respondent testified under oath about his disclosure of confidential student information and the events leading up to that disclosure. (See Ex. 8.) That testimony is admissible as an exception to the hearsay rule. (See People v. Rodriguez (2014) 58 Cal.4th 587, 637.) The fact that the deposition transcript introduced into evidence is unsigned (see Ex. 8, pp. A129, A133) does not affect its admissibility. (Collins v. Superior Court (2001) 89 Cal.App.4th 1244, 1248; Code Civ. Proc., § 2025.520, subd. (f).)

and had not provided him with formal, one-on-one counseling before Student #2 approached him about finding his biological brother. (*Id.* at pp. A80, A122–A123; Ex. 52.)

15. Near the end of the school day on February 23, 2024, Student #2 approached respondent with a new possible surname for his biological brother—this surname matched the surname of Student #1, then a 12-year-old and sixth-grade student at MIS. (Ex. 8, p. A110.) Student #2 urged respondent to arrange a meeting between him and Student #1 that day. (*Id.* at pp. A123–A125.) Student #2 told respondent the meeting “had to happen today,” and respondent did not ask him why arranging the meeting was so urgent. (*Id.* at pp. A85–A86, A101, A107, A123–A125.) Respondent believed Student #1 would be happy to learn that Student #2 was his biological brother, and as respondent would not be able to organize a meeting the next day because he was assigned to work at BIS, respondent arranged for Student #1 to come to respondent’s office to meet Student #2. (*Id.* at pp. A79–A80; A108–A109.) Respondent then disclosed to Student #1 he was adopted, and Student #2 was his biological brother. (*Id.* at p. A76–A77.)

16. Student #1 and Student #2 have the same mother. (Ex. 8, p. A82; Test. of R.O.) Student #1 was adopted when he was just two weeks old. (Ex. 9, p. A142; Test. of R.O.) This was a “no contact” adoption, as Student #1’s parents were concerned about Student #1’s biological mother’s past drug use and gang affiliation. (Ex. 8, pp. A84–A85; Test. of Aguirre; Test. of R.O.) At the time respondent arranged the meeting between Student #1 and Student #2, Student #1 did not know he was adopted. (Ex. 9, pp. A142–A143; Test. of R.O.)

17. According to respondent, Student #2 was happy to get confirmation that Student #1 was his brother. (Ex. 8, p. A83.) Student #1, on the other hand, was

“bewildered” upon suddenly learning he was adopted. (*Ibid.*) Given Student #1’s reaction, and because it was the end of the school day, respondent escorted Student #1 to his father, R.O., who was waiting to pick Student #1 up from school. (*Id.* at p. A108–A110; Test. of R.O.) As respondent followed behind him, Student #1’s head was down and his face was red while approaching R.O. (Test. of R.O.) Respondent introduced himself to R.O. and told him, “I did something that you’re not going to like,” and then explained he introduced Student #1 to Student #2 and told them they were biological brothers. (*Ibid.*)

18. Furious about this disclosure, R.O. asked respondent what gave him the right to tell Student #1 he was adopted. (Ex. 8, p. A90; Test. of R.O.) Respondent explained that Student #2 was “in a bad situation,” and he was trying to help Student #2. (Test. of R.O.) Respondent told R.O. he had tried to meet with Student #2’s parents, but the parents had cancelled the meetings three or four times. (Test. of R.O.)

19. R.O. then took Student #1 home. (Test. of R.O.) Meanwhile, respondent approached MIS’s Assistant Principal, Lorena Guerrero Aguirre, and relayed to her that he had disclosed to Student #1 that he was adopted and that R.O. was upset about the disclosure. (Ex. 8, p. A87–A88; Test. of Aguirre.) Shortly after this, R.O. and Student #1’s mother, T.O., returned and demanded to speak to the school’s principal. (Test. of Aguirre.) Because the principal was not on campus at the time, Aguirre met with R.O., T.O., and respondent in her office. (Ex. 8, p. A87–A88, A107; Test. of Aguirre.) R.O. and T.O. were visibly upset and said respondent had neither the right nor their consent to disclose Student #1’s adoption to him. (Test. of Aguirre.) R.O. and T.O. “wanted something done,” to respondent for telling their son he was adopted. (Ex. 8, pp. A91–A92.) Respondent laughed in R.O.’s face at this suggestion. (Test. of R.O.) Student #1’s parents scheduled a meeting with the school’s principal, Victor Solario, for the

following Monday morning to discuss the matter further. (Test. of Aguirre; Test. of R.O.; Test. of Solario.)

20. On February 26, 2024, Student #1's parents met with Solario. (Test. of Solario.) Before the meeting, respondent told Solario that he did not have ill intent and offered to apologize to Student #1's parents. (Ex. 3; Test. of Solario.) But Student #1's parents no longer wanted to have contact with respondent. (*Ibid.*) Student #1's parents reiterated to Solario that they never provided consent for any District employee to disclose to Student #1 his relationship to Student #2. (*Ibid.*) Student #1's parents repeated that they wanted respondent to face consequences for his disclosure and that they intended to file a complaint against respondent with the District. (*Ibid.*) Following this meeting, Solario drafted a summary of the incident and provided it to the District's Director of Human Resources, Phillip Tenorio. (Ex. 3.) Student #1's parents filed a complaint with the District on March 4, 2024. (Ex. 4.)

21. On February 29, 2024, Tenorio met with respondent and told him that the District was placing him on administrative leave while it investigated his conduct. (Ex. 14, p. A485; Test. of Tenorio.) Tenorio provided respondent with a letter to this effect, which respondent refused to sign. (Ex. 14, pp. A486–A487; Test. of Tenorio.) The letter stated, in part, that respondent was prohibited from being present at any District facility without first obtaining Tenorio's express permission. (*Ibid.*) After placing respondent on administrative leave, respondent contacted Tenorio's office on a few occasions to discuss issues he had with personnel in the District's Human Resources Office. (Test. of Tenorio.) As a result, Tenorio gave respondent his personal cell phone number so respondent could discuss any questions or concerns with Tenorio directly. (*Ibid.*) Respondent is still on administrative leave. (*Ibid.*)

22. When asked under oath if, with the benefit of hindsight, he would again disclose to Student #1 that he was adopted, respondent stated he "would do the same thing," given the circumstances. (Ex. 8, pp. A106–A107.)

23. Respondent's disclosure that Student #1 was adopted had a profoundly negative effect on Student #1's emotions and behavior. Just after returning home on February 23, 2024, Student #1 continued crying and then began vomiting. (Test. of R.O.) According to R.O., Student #1 previously was a happy child but now is depressed, anti-social, and "never happy." (*Ibid.*) Student #1 feels unwanted and is fearful that R.O. and T.O. are going to "give him away" just like his biological parents did. (*Ibid.*) Student #1 no longer wants to do anything with his siblings and parents, opting to retreat alone to his room. (*Ibid.*) R.O. and T.O. tell Student #1 every day they love him and he is their son, but the knowledge that he is adopted makes Student #1 feel as though he is "not worthy." (*Ibid.*) Student #1 now goes to counseling once a week to deal with the revelation he was adopted and the complex emotions associated with that knowledge. (*Ibid.*)

24. Student #1 and Student #2 are friendly now and occasionally play online video games with each other. (Test. of R.O.) As noted above, one of R.O.'s concerns about Student #1 learning he was adopted was because of his biological mother's criminal gang affiliation. (*Ibid.*) After respondent revealed to Student #2 that Student #1 was his brother, social media posts appeared on Instagram implying that Student #1 was a member of a criminal gang in Montebello. (Ex. 7.)

25. On May 24, 2024, respondent sent an email to various District, LACOE, and California Board of Education personnel, complaining about being placed on administrative leave. (Ex. 38.) According to respondent, he recently requested that the District allow him to return to work at BGI, as "none of the districts claims against [him]"

occurred” there and because BGI was a place “where nothing has happened” (*Id.* at p. A1089.)

The Investigation and Respondent’s Later Conduct

26. The District opened an investigation into respondent’s conduct shortly after placing him on administrative leave and receiving the complaint from Student #1’s parents. (Exs. 5, 6.) The District again retained the Titan Group to conduct the investigation. (Test. of Hacopian.) By letter dated April 27, 2024, Hacopian directed respondent to participate in an investigative interview by Zoom teleconference scheduled for April 30, 2024. (Ex. 48.) Respondent refused to participate in the interview because he was dissatisfied with the firm’s earlier investigation of his allegations of misconduct against the District. (Ex. 49; Test. of Hacopian.).

27. On July 30, 2024, respondent sent a text message to Tenorio asking when he would be allowed to return to work. (Ex. 36, p. A1081.) Tenorio responded on August 2, 2024, informing respondent he would remain on administrative leave through the beginning of the school year. (*Id.* at p. A1084.) Respondent replied on August 6, 2024, expressing frustration about his placement on administrative leave, and stating he was eager to receive the results of the District’s investigation. (*Id.* at p. A1085.)

28. Despite acknowledging Tenorio’s text message and expressing a clear understanding that the terms of his administrative leave were still in effect, respondent attended a start-of-school-year breakout session at Eastmont Intermediate School, a school within the District, on August 8, 2024. (Ex. 41; Test of Tenorio; Test. of Solario.) On August 9, 2024, respondent appeared at BGI, having told other District employees he was unaware of his work assignment for the coming school year. (*Ibid.*) After

consulting the District's Human Resources office and Hacopian, District staff informed respondent he was still on administrative leave and needed to leave District property. (*Ibid.*)

29. By separate letters dated August 15, 2024, the District informed Student #1's parents and respondent of the results of the Titan Group's investigation. (Exs. 9, 10.) The Titan Group found respondent acted inappropriately when he revealed to Student #1 that he was adopted and that respondent knew or should have known his actions were "highly egregious and careless." The Titan Group also found respondent was insubordinate by refusing to participate in the investigation, despite receiving a directive from Hacopian to do so in April 2024. (Ex. 10, p. A143.)

30. Shortly thereafter, the District initiated dismissal proceedings against respondent.

Relevant Federal and State Laws, and Board Policies

31. The federal Family Educational Rights and Privacy Act (FERPA) and its implementing regulations set forth requirements regarding access and disclosure of student educational records. Generally, student educational records, and any information contained therein, may not be released without the consent of the parents. (See Ex. 31 [FERPA Regulations]; see also 20 U.S.C. § 1232g.)

32. Education Code section 49602 provides that "information of a personal nature" disclosed by a pupil 12 years or older in the process of receiving school counseling is confidential and "shall not be revealed, released, discussed, or referred to," except under certain circumstances not present here. Similarly, District Board Policy (BP) 5145.1, requires that all school counselors shall "respect the confidentiality of any personal information disclosed by students 12 years of age or older during the

course of educational counseling,” except as required by law. (Ex. 34, p. A1077.) BP 4119.23(a) also requires all District staff to “maintain the confidentiality of all confidential records until such time as laws, state regulations and/or bylaws of this district permit disclosure. Information and records pertaining to . . . student records are not subject to public disclosure.” (*Id.* at p. A1061.)

33. A District employee’s use of District technological resources, such as an email address, is governed by BP 4040, Administrative Regulation (AR) 4040, and the District’s Acceptable Use Policy. (Ex. 43.) BP 4040 provides in part that employees “shall use the district’s electronic resources only for purposes related to their employment,” and failure to abide by the District’s regulations relating to use of technology shall subject the employee to “disciplinary action, revocation of the user account, and legal action as appropriate.” (*Id.* at p. A122.) AR 4040 provides that District employees are allowed to use the District’s technological resources in accordance with its Acceptable Use Policy. (*Id.* at p. A1124.) The District’s Acceptable Use Policy states in part that “inappropriate, unauthorized, or unacceptable use may lead to disciplinary and/or legal action” (*Id.* at p. A1125.)

Assessment of Respondent’s Conduct

34. The District introduced expert testimony about school counseling and school administration through Katherine Thorossian, Ed.D. According to Dr. Thorossian, there are two sets of key professional standards applicable to school counselors in California: the American School Counselor Association Ethical Standards for School Counselors (ASCA Standards) and the California Standards for the School Counseling Profession issued by the California Association of School Counselors. (Test. of Thorossian; Exs. 1, 2.) Dr. Thorossian opined that respondent breached numerous elements of the ASCA standards, including those relating to student

development, confidentiality, student recordkeeping, and responsibilities to parents and the school. (Test. of Thorossian.) In Dr. Thorossian's opinion, respondent committed a grave violation of the ethical standards that all school counselors must follow. Moreover, respondent's disclosure to Student #1 was made with no rational or emergent justification. (*Ibid.*) Under such circumstances, respondent's actions might have been excused or mitigated. (*Ibid.*) Dr. Thorossian further opined that the community's trust in the District would have been shaken if respondent's conduct was more widely publicized.

35. District employees who testified at the hearing, including Solario, Tenorio, Aguirre, and Hacopian, universally expressed shock and dismay at respondent's conduct, as respondent never provided a compelling reason to any of them why making the disclosure to Student #1 was necessary. No District employee who testified at the hearing believes it would be appropriate for respondent to return as a counselor at MSI, especially because Student #1 still attends classes there. Dr. Thorossian concurred with this assessment, opining that respondent's pattern of repeated disregard for District directives and his failure to take any responsibility for his grave misconduct make him unsuitable for continued employment within the District.

LEGAL CONCLUSIONS

Applicable Law

1. A permanent certificated employee may be dismissed for cause only after a dismissal hearing. (Ed. Code, §§ 44932, 44934, & 44944.)

2. When a school board recommends dismissal for cause, a Commission on Professional Competence may only vote for or against the dismissal; the Commission may not dispose of a charge seeking dismissal by imposing probation or an alternative sanction. (Ed. Code, § 44944, subds. (c)(1)–(3).)

3. Pursuant to Education Code section 44932, a permanent certificated employee may be dismissed for, among other grounds, the following: immoral conduct, dishonesty, unfitness, and persistent violation.

Burden and Standard of Proof

4. The standard of proof in these disciplinary proceedings is a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039–1040.) “Preponderance of the evidence” means evidence that has more convincing force than that opposed to it. (*Glage v. Hawes Firearms Company* (1990) 226 Cal.App.3d 314, 324.) “[T]he sole focus of the legal definition of ‘preponderance’ in the phrase ‘preponderance of the evidence’ is on the *quality* of the evidence. The *quantity* of evidence presented by each side is irrelevant.” (*Id.* at 324–325, original italics.)

Analysis

5. The Commission is charged to make the following determinations: (1) did the conduct in the Statement of Charges occur? (2) did the proven conduct violate a statute (here, immoral conduct, dishonesty, evident unfitness, or persistent violation); and (3) if so, is respondent unfit to hold is credential?

CAUSES FOR DISCIPLINE

Immoral Conduct

6. The first cause for discipline in the Statement of Charges alleges respondent engaged in immoral conduct. "The term 'immoral' has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wilful [sic], flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. [Citation.]" (*Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740; see also *Board of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

7. The Commission finds the District has met its burden to prove by a preponderance of the evidence that respondent engaged in immoral conduct. Respondent used confidential student records to determine that Student #1 and Student #2 shared the same biological mother. (Factual Finding 14.) Respondent then disclosed to Student #1 that he was adopted without consulting Student #1's parents to ascertain if he was approved to make this disclosure. (Factual Findings 15–18.) When Student #1's father, R.O., suggested respondent face some consequence for making this unauthorized disclosure, respondent laughed in his face. (Factual Finding 19.) Although respondent may have disclosed this information because of a sincere concern for Student #2's well-being, there was no compelling justification, legal or otherwise, to reveal to Student #1 that he was adopted or assume Student #1 would have been happy to learn about it. Moreover, even with the benefit of hindsight and after seeing Student #1 and his parents' intensely negative reaction to the

disclosure, respondent still believes he did nothing wrong and would not do anything differently. (Factual Findings 19–22.) Such a callous disregard for the privacy rights of Student #1, Student #2, their parents, and the ethical standards of respondent’s profession as a counselor, constitutes immoral conduct.

Dishonesty

8. The second cause for discipline in the Statement of Charges alleges respondent engaged in dishonesty. “Dishonesty necessarily includes the element of bad faith. . . . It means fraud, deception, betrayal, faithlessness,” and “denotes an absence of integrity; a disposition to cheat, deceive, or defraud; deceive and betray.” (*Hogg v. Real Estate Com’r* (1942) 54 Cal.App.2d 712, 717 [internal citation omitted].) But not every falsehood constitutes dishonesty within the meaning of Education Code section 44932, subdivision (a). (See *Fontana Unified School District v. Burman* (1988) 45 Cal.3d 208, 220, fn. 12).

9. The Commission finds the District has not met its burden to prove by a preponderance of the evidence that respondent engaged in dishonesty. Although respondent’s conduct in revealing Student #1’s biological relationship to Student #2 was an egregious violation of the rights of Students #1 and #2 and their families, respondent did not attempt to hide this conduct from R.O., Guerrero, Solario, or Tenorio, and was not circumspect about his conduct in his later deposition testimony. (See Factual Findings 15–21.) Moreover, respondent’s later statement suggesting the District should allow him to return to work at BGI because “nothing happened” there is not dishonest. (See Factual Finding 25.) This statement is accurate in the sense that respondent’s disclosure of information related to students at MSI, not BGI. Respondent’s refusal to accept that his misconduct at MSI might also disqualify him from continuing to work at BGI is relevant to his fitness to be a school counselor. So

too is respondent's refusal to show remorse or accept responsibility for his misconduct. But neither demonstrates dishonesty.

10. Respondent feigned ignorance about his job assignment for the 2024-2025 school year when he appeared at District events and premises in August 2024, even though he knew he was still on administrative leave. (Factual Findings 26–28.) His appearance at District premises violated the terms of his administrative leave and is relevant to other causes for discipline alleged by the District. (Factual Findings 21, 28.) But even if respondent's stated reason for appearing at these District events was misleading, this Commission finds this single statement alone does not constitute dishonesty under Education Code section 44932, subdivision (a).

Evident Unfitness for Service

11. The third cause for discipline in the Statement of Charges alleges respondent's conduct demonstrates evident unfitness for service under Education Code section 44932, subdivision (a)(6). "Evident unfitness for service" means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. . . . [The term] connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Woodland J. Unified School Dist. v. Com. on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444 (*Woodland*)). It is not necessary to determine whether each proven act demonstrates unfitness for service; rather, the entirety of the offensive conduct should be considered. As stated in *Woodland, supra*, "[w]hen a camel's back is broken we need not weigh each straw in its load to see which one could have done the deed." (*Id.* at p. 1457.)

12. The Commission finds the District has met its burden to prove by a preponderance of the evidence that respondent is unfit for service. Respondent engaged in an egregious violation of the privacy rights of Student #1, Student #2, and their families. (Factual Findings 15–19.) Respondent showed little remorse for his misconduct. (Factual Findings 19–20, 22.) This failure to acknowledge and reflect upon the immense pain he caused Student #1 and his family connotes an unfitness for continued service. (Factual Findings 22–24.) So too does respondent’s continued failure to abide by District Policies and Hacopian’s directives. (Factual Findings 7–12, 26, 28.)

Persistent Violation

13. The fourth cause for discipline in the Statement of Charges alleges respondent’s conduct demonstrates “[p]ersistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the state board or by the governing board of the school district employing him,” under Education Code section 44932, subdivision (a)(8).

14. A single violation of a school board’s rules by a permanent certificated employee is not of itself cause for discipline. (*Oakdale Union School Dist. v. Seaman* (1972) 28 Cal.App.3d 77.) Rather, the District must show that the employee’s refusal to follow laws and regulations was “persistent,” *i.e.*, “stubborn and continuing.” (*San Dieguito Union High School District v. Commission on Professional Competence* (1985) 174 Cal.App.3d 1176, 1183.) Isolated incidents or incidents involving an issue unresolved over a period of time are not generally considered “persistent.” (*Bourland v. Commission on Professional Competence* (1985) 174 Cal.App.3d 317.)

15. The Commission finds the District has met its burden to prove by a preponderance of the evidence that respondent engaged in persistent violation of or refusal to obey school laws or District regulations. Respondent violated numerous District policies by using his District email address to make complaints and air personal grievances about the District to inappropriate recipients, such as employees of LACOE and the California Board of Education. (Factual Findings 7–12.) Despite Hacopian’s repeated warnings, respondent continued to send these emails until at least May 2024, mere months before the District commenced dismissal proceedings against him. (Factual Findings 2, 25.) Respondent’s disclosure to Student #1 that he was adopted violated federal and state law, as well as District policies governing student privacy. (Factual Findings 15–19, 31–33.) Respondent also refused to comply with Hacopian’s directive to participate in the Titan Group’s investigation into his conduct relating to Student #1. (Factual Finding 26.) Taken together, this conduct constitutes a persistent violation of, or refusal to obey, the District’s regulations.

Relationship of Misconduct to Fitness to Hold Credentials

16. In deciding whether cause for dismissal exists under the amorphous concepts of immoral conduct, dishonesty, and evident unfitness for service, it also must be established an employee’s misconduct relates to their fitness, competence, or ability to perform the duties authorized by their credential within the meaning of *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 227–230 (*Morrison*).

17. Under *Morrison* and as provided by California Code of Regulations, title 5, section 80302, the factors in making this determination may include, but are not limited to, the following (1) likelihood that the conduct may have adversely affected students, fellow teachers, or the educational community, and the degree of such adversity anticipated; (2) proximity or remoteness in time of the conduct; (3) type of

credential held; (4) extenuating or aggravating circumstances surrounding the conduct; (5) praiseworthiness or blameworthiness of the motives resulting in the conduct; (6) likelihood of recurrence of the conduct; (7) the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the person involved or other certified persons; and (8) the publicity or notoriety given to the conduct. Only the most pertinent *Morrison* factors need to be considered in a particular case. (*West Valley-Mission Community College Dist. v. Concepcion* (1993) 16 Cal.App.4th 1766, 1777.) The factors may be applied to the charges in the aggregate, considering the totality of the employee's conduct. (*Woodland, supra*, 2 Cal.App.4th at p. 1444.)

18. The *Morrison* factors applicable to respondent's conduct in this matter are discussed below:

- The likelihood that the conduct may have adversely affected students, fellow teachers, or the educational community, and the degree of such adversity anticipated – Respondent's conduct adversely affected Student #1 and his parents. The adversity has been ongoing and severe, harming Student #1's relationship with his parents and siblings and requiring him to undergo counseling.
- The proximity or remoteness in time of the conduct – Respondent's disclosure to Student #1 occurred February 2024, which is recent. The District also adduced evidence of respondent's persistent refusal to comply with the District's regulations began in June 2022 and continued through May 2024, which is also recent.

- The extenuating or aggravating circumstances surrounding the conduct – Respondent offered no mitigating circumstances at hearing for his various acts of misconduct.
- The praiseworthiness or blameworthiness of the motives resulting in the conduct – As discussed above, respondent may have had a sincere concern for Student #2's wellbeing when disclosing to Student #1 that he was adopted, but that motive must also be weighed against the harm Student #1 experienced in learning this fact. With respect to respondent's other conduct, such as using his District email address inappropriately or flouting Hacopian's directive to participate in the District's investigation, respondent failed to explain why such actions were necessary or had an innocent motive.
- The likelihood of recurrence of the conduct – Respondent expressed little remorse for his misconduct relating to Student #1 and testified under oath that he would do it again. Respondent also demonstrated a persistent, ongoing refusal to comply with District policies and Hacopian's directives. Thus, the likelihood of recurrence of respondent's misconduct is high.
- The extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the person involved or other certified persons – Respondent advanced no argument at hearing concerning this factor. Nor is there any serious argument that a school counselor has a constitutional right to tell a 12-year-old student he is adopted under the circumstances presented here.
- The publicity or notoriety given to the conduct – There appears to have been little publicity about respondent's disclosure to Student #1 that he was

adopted. As Dr. Thorossian testified, the consequences for respondent's disclosure would have been magnified even more, and the District's reputation further harmed, if respondent's conduct was well-known in the community. (Factual Finding 34.)

19. After evaluating the *Morrison* factors, the Commission finds that respondent's misconduct is related to his fitness and ability to perform the duties authorized by his credential as a school counselor.

Disposition

20. "The Commission has broad discretion in determining what constitutes unfitness . . . , and whether dismissal or suspension is the appropriate sanction." (*California Teachers Ass'n v. State of California* (1999) 20 Cal.4th 327, 343–344.) The Commission finds that respondent engaged in immoral conduct, is unfit for service, and engaged in persistent violation of the District's policies. That misconduct is related to his fitness to hold his credential. Respondent's dismissal from his position as school counselor for the District is appropriate under the circumstances.

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ORDER

Respondent George Muriel's appeal is denied. The District's request to suspend and dismiss respondent George Muriel is granted. Respondent George Muriel shall be dismissed from the District.

DATE: 08/11/2025


John Chae (Aug 11, 2025 07:57:12 PDT)

JOHN CHAE

Commission Member

DATE: 08/11/2025


Marla Diaz (Aug 11, 2025 11:54:59 PDT)

MARLA DIAZ

Commission Member

DATE: 08/11/2025



TAYLOR STEINBACHER

Administrative Law Judge

Office of Administrative Hearings